IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 131
(CAA)-183(PB)/2017

IN THE MATTER OF:
KPS Infraproject Limited and
Fortune Proptech Pvt. Ltd. .... Applicant/petitioner

Order under Section 230-232

Order delivered on 01.11.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:

For the Petitioner	Mr. Ashish Middha & Mr. Purav Middha, Advs.
For the RD	Ms. Chetna Kandpal, CP
For the OL	Mr. Saurabh Sapra, Adv. for Mr. Amish Tandon, Adv.
For the ITD	Ms. Bhawna Singh, Adv. for Ms. Lakshmi Gurung, Standing Counsel

ORDER

There is no clarification given by the RD with regard to the date of striking off all six companies as per the details in para 5 which are as under:-

"5. That as per the report of ROC it is stated inter alia that "in this regard, this office has submitted a factual report at Para No. 32 of the said report dated 27.10.2017 that.

"It has been observed from MGT-7 for the financial year ended on 31.03.2016 filed by the Transferor Company No. 1 on MCA-21 Portal along with its list of shareholders that as on 31.03.2016, it had 26 shareholders, out of which the names of following body corporates have either struck off in terms of the provisions of Section 248 of the Companies Act, 2013 or under process of striking off. Further, the investment of such companies have shown to be transferred in the names of their directors:-

(a) Axix Metal & Alloys Private Limited (struck off)
(b) Estilo Marketing Private Limited (struck off)
(c) Jumbo Marketing Private Limited (struck off)
(d) Kesri Industrial Lab. (Electronics) Private Limited (under process of striking off)
(e) Lancer Constructions Private Limited (under process of striking off)
(f) NM Financial Consultants Private Limited (under process of striking off)"

It becomes important to ascertain the date of striking off because the share transfer deed have been approved on 26.03.2016 which have been placed on record by the RD. Accordingly, RD is directed to file the additional affidavit giving the details of dates of the striking off along with the copy of the order in its support. The needful shall be done within ten days with a copy in advance to the counsel opposite.

List for further consideration on 03.12.2019.

Sd/-

(M.M.KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

01.11.2019
Ritu Sharma